

In T.1839/18 the board noted that labelling an opponent as a "straw man" was misguided, as no interest in raising an opposition was necessary or needed to be proven, and consequently any argument based on an opponent's alleged lack of "real interest" had to fail.

2.1.5 Repeated filing of opposition documents by the same person

According to T.9/00 (OJ 2002, 275), the repeated filing of an opposition by the same person could be objected to for lack of legitimate interest. A (legal) person who filed two different notices of opposition against the same patent acquired party status as an opponent only once, even if both notices complied with the requirements of Art. 99(1) EPC and R. 55 EPC 1973 (R. 76 EPC). Both oppositions in question gave lack of novelty and lack of inventive step as grounds. Since the later opposition did not entail any change in the legal situation in the opposition proceedings compared to the earlier one, the board dismissed it as inadmissible for lack of a general legitimate interest. Nor could such an interest be inferred from the fact that the later opposition was assigned to a different part of the company and only that part of the company had been transferred to a third party. The status of opponent could pass to a third party only if both parts or the entire company were transferred to it.

In T.774/05 a notice of opposition was filed on one day, enclosing a cheque for the opposition fee but no reasoned statement. On the following day further documents were filed which included patent documents and a reasoned statement referring to a notice of opposition. According to the board, the opponent's intention was to maintain a single opposition, as evidenced by the statement in the faxes that the cheque for the opposition fee presented the day before should be used for the opposition. The only indication of separate oppositions was the fact that both the document filed initially and the faxes of the following day each stated that they were an opposition. This was not an indication, however, of an intention on the part of the opponent to file two oppositions but rather an indication of their content. Taking all these documents together, the board considered that the opponent had filed only one opposition, for which the requirements for a valid filing were completed within the opposition period. The opposition was therefore admissible.

In T.966/02, the same opponent had filed two oppositions, the second of which cited document D1, on which the opposition division based its decision. The main issue was whether the opposition division had been competent to use the document cited in the second opposition. The board stated that the first opposition had been filed in due form and time and was therefore admissible. Hence there was no need to decide whether the second opposition was admissible, since the department of first instance was, in any event, competent to take account of both document D1 and any other relevant material of its own motion (Art. 114 (1) EPC).

2.1.6 Filing of multiple oppositions by different persons – single opposition proceedings

According to Art. 99(3) EPC, opponents are parties to the opposition proceedings as well as the patent proprietor. It is clear from this provision that multiple admissible oppositions do not initiate a corresponding number of parallel opposition proceedings but only a single

one. Each opponent can rely on an opposition ground duly submitted by other opponents and communicated to all parties in accordance with R. 79(2) EPC, both in the opposition proceedings and in any subsequent appeal proceedings (T 270/94, T 620/99, T 774/05, T 1657/14, T 891/16).

2.1.7 Filing a joint opposition – multiple opponents

a) Payment of a single opposition fee

In G 3/99 (OJ 2002, 347), the Enlarged Board of Appeal held that an opposition filed in common by two or more persons, which otherwise met the requirements of Art. 99 EPC 1973 and R. 1 EPC 1973 (R. 3 EPC) and R. 55 EPC 1973 (R. 76 EPC), was admissible on payment of a single opposition fee. The payment of the opposition fee was linked to the filing of an opposition and not to the number of persons who filed the opposition. There was no procedural difference with respect to an opposition filed by a single natural person, by a single legal person or by a single body equivalent to a legal person by virtue of the law governing it. With respect to the wording "any person" in Art. 99(1) EPC 1973 and its interpretation in line with Art. 58 EPC 1973, the Enlarged Board held that, as regards an opposition filed in common by a plurality of persons, each of the common opponents had to be either a natural person, a legal person, a body equivalent to a legal person by virtue of the law governing it or a combination thereof.

b) Representation, legal status and composition of a multiple opponent

In G 3/99 (OJ 2002, 347), the Enlarged Board also held that, in an opposition filed in common, there had to be in all cases a **common representative** (Art. 133(4) EPC 1973 and R. 100 EPC 1973). Only that common representative is entitled to act in the opposition proceedings on behalf of all the common opponents taken as a whole and to sign the filed documents. Since the EPO treats a procedural act performed by a non-entitled person in the same way as a missing signature (see T 665/89), each common opponent or any other person acting on his behalf could perform such an act to avoid missing a deadline, provided the deficiency is remedied within an additional period set by the board in the communication under R. 36(3) EPC 1973 (R. 50(3) EPC), notified to the common representative and sent for information to the non-entitled person who performed the act. The deficiency is remedied once the procedural act is signed by the common representative.

According to the Enlarged Board, in order to safeguard the rights of the patent proprietor and in the interests of procedural efficiency, it had to be **clear throughout the proceedings** who belonged to the group of common opponents or common appellants. If either a common opponent or appellant (including the common representative) intended to withdraw from the proceedings, the EPO had to be notified accordingly by the common representative or by a new common representative determined under R. 100(1) EPC 1973 in order for the withdrawal to take effect.

Referring to this case law in its interlocutory decision in T 482/02 of 9 February 2005, the board stated that, where it was doubtful whether an opposition had been filed on behalf of

a body which enjoyed legal personality in its own right or on behalf of several natural persons acting in common, the opponents (here a UK partnership) should be invited to establish that the body was a legal person or an equivalent thereto. If this was not established, the opposition was to be considered as having been filed on behalf of the several natural persons as common opponents (see also T. 866/01). In that case the opponents still had to furnish the names and addresses of the partners in order to comply with R. 55(a) EPC 1973 (R. 76(2)(a) EPC). If this information was not received within a period specified by the board, the opposition had to be rejected as inadmissible under R. 56(2) EPC 1973 (R. 77(2) EPC), irrespective of whether or not such information would have been sufficient to prevent rejection under R. 56(1) EPC 1973 (R. 77(1) EPC).

Similarly, in T. 315/03 (OJ 2005, 246), the board followed G. 3/99, adding that, while the admissibility of an opposition by multiple opponents had to be kept under review throughout the proceedings, parties could not expect the opposition division or board to do this alone. It was clear that the board had neither the resources nor the knowledge of the relevant laws of all the contracting states necessary to police the composition of, and the legal status of all members of, multiple opponents. Once prima facie admissibility was acknowledged, it had to be up to the party or parties seeking to challenge admissibility to make a case of inadmissibility.

With regard to changes over time in the **composition** of a multiple opponent, the board agreed with the respondent that the absence over eleven and a half years of any notification concerning the 1200 members of opponent 6 ("opposition club") could in itself be considered an indication that the "clear throughout" condition established in G. 3/99 had not been complied with. On the other hand, the fact that certain opponents only came into being for the purpose of filing opposition to one patent could not in itself be an objection to admissibility; an opponent's motive or lack of motive was irrelevant (see G. 3/97, OJ 1999, 245). Similarly, it appeared to the board to be wholly irrelevant that an opponent, whether individual or multiple, might be supported by others (e.g. employees or shareholders of a company which was a party). Such supporters clearly could not take any part in the proceedings and could not affect its outcome. Moreover, the support for a party could not per se be a reason to challenge admissibility.

2.2. Formal requirements for opposition and filing in due time

2.2.1 Introduction

According to Art. 99(1) EPC notice of opposition must be filed within nine months of the publication of the mention of the grant of the European patent in the European Patent Bulletin. Notice of opposition is not deemed to have been filed until the opposition fee has been paid. In the interests of legal certainty, the Convention lays down certain further requirements that must be met before the opposition period expires, in particular that the notice of opposition is filed in a written reasoned statement (R. 76(1) EPC) and that it sufficiently identifies the opponent (R. 76(2)(a) EPC) and the patent opposed (R. 76(2)(b) EPC), that it states the extent to which the patent is opposed and the specific grounds, and that it indicates the facts and evidence presented in support of these grounds (R. 76(2)(c) EPC). Fulfilment of the requirements of R. 76(2)(c) EPC (R. 55(c) EPC 1973)

is not only essential for the admissibility of the opposition. They also establish the legal and factual framework of the opposition (see G. 9/91 and G. 10/91, OJ 1993, 408 and 420).

2.2.2 Opposition period

a) Period triggered by the publication of the mention of the grant of the patent

In T. 438/87 the question addressed was whether a **delay in publication** of the European patent specification could affect the calculation of the nine-month period for filing an opposition. The board concluded that, since the mention of the grant of the patent in suit had been brought to the public's attention in the normal way, it was from this date that the opposition period had begun, irrespective of what problems may have affected publication of the patent specification and what consequences such an untoward event might have for certain third parties owing to their geographical location.

According to T. 1644/10, the opposition period is triggered solely by the grant of a European patent and publication of the mention of its grant in the European Patent Bulletin. The mention in the European Patent Bulletin that a correction of the patent specification has been issued does not trigger either a first or any "further" opposition period, even if the corrected specification confers a broader scope of protection than that conferred by the one originally published.

b) Observance of the time limit – filing by fax

In T. 2061/12, the board noted that the case law of the boards of appeal distinguished between fax parts received before and after midnight, according to the different filing dates (T. 683/06, T. 2133/10; decision of the President of the EPO dated 12 July 2007, OJ SE 3/2007, 7, in force at the relevant time, now superseded by the decision of the President of the EPO dated 20 February 2019, OJ 2019, A18). In this case, only the last page and possibly part of the penultimate one had arrived after midnight, while Form 2300 signed by the patent agent, the payment form and at least the first two pages of the notice of opposition – which at a minimum substantiated a novelty objection – had all certainly reached the EPO before midnight. The opposition had therefore been filed in due time under Art. 99(1) EPC; it also complied with R. 76(1) and (2) EPC. It was therefore admissible (R. 77(1) and (2) EPC). See also T. 2317/13.

However, in T. 858/18 the board held that if a facsimile transmission of a document within the meaning of R. 50(3) EPC begins on an earlier date and extends beyond midnight to a later date, the entire document is accorded the later date as the single date of receipt. The board found that the decision of the President of the EPO dated 12 July 2007 concerning the filing of patent applications and other documents by facsimile (OJ SE 3/2007, 7; now superseded by the decision of the President of the EPO dated 20 February 2019, OJ 2019, A18) provided no legal basis for according the earlier date as the date of receipt for the part of the document arriving at the EPO before midnight. The term "document" referred to the record of a complete unit of information.

The board in T.2307/15 (regarding a statement setting out the grounds of appeal received by fax) did not follow this approach, but confirmed the approach taken in T.2061/12 and T.2317/13 (for a more detailed abstract of T.2307/15, see chapter V.A.2.6.).

2.2.3 Payment of opposition fee – correction of a payment form

Art. 99(1), last sentence, EPC states that a notice of opposition is not deemed to have been filed until the opposition fee has been paid. According to the board in T.152/85 (OJ 1987, 191), payment of an opposition fee is a factual requirement, which must be fulfilled within the nine-month opposition period if an opposition is to be admitted. Failure to pay an opposition fee within the required period where the filing of an opposition is intended is a factual mistake which cannot be rectified once the time limit for filing an opposition has passed. In the board's view, it could not be corrected under R. 88 EPC 1973 (R. 139 EPC). It was apparent from the wording of that rule that the clear policy of the EPO was to distinguish between a mistake in a document and other kinds of mistakes, such as failure to pay a fee in time, and only to allow correction of mistakes in a document.

In T.1000/19, however, the board allowed the correction of electronic form 2300E. The opponent's representatives had mentioned in their letter accompanying the notice of opposition that they had authorised the responsible EPO department to debit the opposition fee from their deposit account, but had failed to indicate the payment method in box X of the form. The opposition division's view that R. 139 EPC was not "time-barred" and could therefore not be applied to the non-extendable time limit for filing an opposition was rejected by the board as legally incorrect. There could be no doubt that the ratio of G.1/12 (OJ 2014, A114) also applied if the admissibility of an opposition, or the question whether an opposition was deemed to have been filed, was concerned (T.615/14, T.579/16). Furthermore, the board saw no reason why the lines of reasoning set out in G.1/12 regarding the applicability of R. 139 EPC should not equally apply to a correction of an incorrectly filled-in payment form (see T.317/19). Rather, the applicability of R. 139 EPC to debit orders had been acknowledged or at least not ruled out by the boards of appeal (T.152/82, OJ 1984, 301, T.17/83 of 20 September 1983).

2.2.4 Identity of opponent and correction of opponent's name

a) Principles

Under R. 76(2)(a) EPC and R. 41(2)(c) EPC, the notice of opposition must contain the name, address and nationality of the opponent (nationality only for natural persons, T.978/17) and the state where his residence or principal place of business is located. However, a notice of opposition in which a piece of information required under R. 76(2)(a) EPC in conjunction with R. 41(2)(c) EPC is missing is inadmissible only if the opponent **cannot be clearly identified** by the end of the opposition period (see T.25/85, OJ 1986, 81; T.1551/10; T.978/17).

T.590/94 held that this defect cannot be remedied. With reference to the rationale of G.1/12 (relating to correction of the appellant's name) the board in T.615/14 concluded